

should refuse permission for a former member of the boards of appeal to make oral submissions during oral proceedings before it, unless it was completely satisfied that **a sufficient period of time** had elapsed following termination of such former member's appointment to the boards of appeal, so that the board of appeal could not reasonably be suspected of partiality in deciding the case if it allowed such oral submissions to be made.

After **three years** have elapsed, permission should be granted except in very special circumstances.

T 585/06 dealt with the presence of a former member of the boards of appeal at the oral proceedings before the opposition division and acting as consultant of the patent proprietor. The former member had not acted as an authorised representative but only as the patent proprietor's consultant. He had not addressed the opposition division. This amounted to an important difference from the facts of case G 2/94.

5.4. Oral submissions by qualified patent lawyers of non-EPC contracting states

Another question of law decided in G 4/95 was whether, having regard in particular to the provisions of Art. 133 and Art. 134 EPC 1973, a person who was not qualified in accordance with Art. 134 EPC 1973 but was a qualified patent lawyer in a country which was not an EPC contracting state might present some or all of a party's case as if he were qualified under Art. 134 EPC 1973. The Enlarged Board decided that no special criteria applied to the making of oral submissions by qualified patent lawyers of countries which were not contracting states to the EPC. The criteria set out above were equally applicable to such patent lawyers(see T 774/05 with respect to "US patent attorney").

In case T 756/09, the request for oral submissions by Dr M, an Australian patent attorney, was made only ten days before the oral proceedings and the appellant (opponent) had denied its agreement both in writing and at the beginning of the oral proceedings. In support of its request, the respondent (patent proprietor) essentially submitted that Dr M would not make submissions in the capacity of a technical expert, but as a patent attorney who was very familiar with the case, had advised the professional representative before the oral proceedings and would continue to do so during the oral proceedings. Taking into account the circumstances of the case, in particular that Dr M was not a technical expert and thus was **not** expected to elaborate on technical aspects of the case in a manner which might take the appellant **by surprise**, the board concluded that submissions made directly by Dr M under the supervision of the professional representative would not put the appellant (opponent) at a disadvantage and might contribute to an efficient debate. Hence, despite its late filing, the board decided to accede to the respondent's request for oral submissions by an accompanying person with the proviso that such submissions would be stopped if new technical facts or arguments were introduced into the debate.

W. Guidelines for Examination in the European Patent Office

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In accordance with Art. 10(2)(a) of the European Patent Convention (EPC), the President of the European Patent Office (EPO) adopted, effective as at 1 June 1978, the Guidelines for Examination in the European Patent Office. Since the decision of the President dated 28 July 2015 the Guidelines have been amended pursuant to Art. 10(2) EPC in accordance with the policy of revising them annually. The latest version of the Guidelines is the March 2022 edition, second edition. It was drawn up in line with the new revision-cycle arrangements, which ensure greater user involvement. This amended version of the Guidelines entered into force on 1 March 2022 and supersedes the March 2021 edition; the March 2021 edition superseded the November 2019 edition. It is available online at www.epo.org. Notices giving general information about the changes made in each revision round are published in the OJ: for the November 2015 version in OJ 2015, A74; for the November 2016 version (the last version to be published as a hard copy) in OJ 2016, A76; for the November 2017 version, in OJ 2017, A75; for the November 2018 version, in OJ 2018, A73; for the November 2019 version, in OJ 2019, A81; for the March 2021 version, in OJ 2021, A6; for the March 2022 version, in OJ 2022, A10. Please note that the Guidelines do not constitute legal provisions. For the ultimate authority on practice at the EPO it is necessary to refer firstly to the EPC itself, including the Implementing Regulations, and secondly to the interpretation put upon the EPC by the boards of appeal and the Enlarged Board of Appeal (Guidelines General Part, 3 – March 2022 version). With the exception of important aspects relating to interlocutory revision, the appeals procedure is not dealt with in the Guidelines (Guidelines General Part, 5 – March 2022 version).

Art. 20(2) RPBA 2020 (OJ 2019, A63), just like Art. 20(2) RPBA 2007 before it, stipulates that: "If, in its decision, a Board gives a different interpretation of the Convention to that provided for in the Guidelines, it shall state the grounds for its action if it considers that this decision will be more readily understood in the light of such grounds."

It should be borne in mind that the edition of the Guidelines referred to in the following abstracts of board decisions is that applied by the board in question and may have been worded differently from the March 2022 version. The various different editions of the Guidelines are archived at www.epo.org/law-practice/legal-texts/guidelines/archive.html.

1. Guidelines not binding on boards

The Guidelines for Examination are not binding on the boards of appeal.

In T 1561/05 the board confirmed that the Guidelines for Examination in the EPO were not binding on the boards of appeal (applying T 162/82, OJ 1987, 533). T 1561/05 of 17 October 2006 is also referred to in J 7/10.

In T 740/98 the board noted, among other things, that the legal system established under the Convention did not treat the Guidelines as binding.

In T 1063/06 (OJ 2009, 516), the board held that the appellant could not successfully rely on the Guidelines to support its right to a functional definition of chemical compounds before the boards. It could be left open whether or not the appellant's contentions with respect to the Guidelines' content were correct, because the Guidelines were issued by the President of the EPO and had no normative binding effect on the boards of appeal (with reference to T 162/82 and Art. 23(3) EPC).

In T 1356/05 the board stated that no provision of the Guidelines could override an article or rule of the EPC (see also T 1360/05, and T 861/02, in which the board, while noting the advice in the Guidelines on decisions consisting of references to communications, stated that R. 68(2) EPC 1973 (R. 111 EPC) must always be complied with).

In T 500/00 the appellant argued that the disclaimer had been made in good faith according to the Guidelines and in accordance with the practice of the boards of appeal at the time of making the disclaimer. The board pointed out that the Guidelines were not rules of law and noted that what counted was not whether the opposition division had acted in accordance with the Guidelines, but whether it had acted in accordance with the Convention.

As to the alleged lack of consistency between what was in fact the established case law and the Guidelines for Examination, the board in T 1741/08 noted that it was not bound by the Guidelines, an important factor in the judicial independence of the boards of appeal (Art. 23(3) EPC). An alleged divergence between the Guidelines for Examination and case law therefore could not be a sufficient basis for challenging the case law by means of a **referral** to the Enlarged Board of Appeal.

In T 1363/12 the board stated that it is to be noted that the principles established by the Enlarged Board of Appeal for the assessment of the requirement of Art. 123(2) EPC could not be changed **by issuing amended Guidelines**.

In ex parte case T 1090/12, the appellant drew the attention to the Guidelines G-VII, 3.1 ("an assertion that something is common general knowledge need only be backed by documentary evidence (for example, a textbook) if this is contested") and submitted that this passage was binding on the boards of appeal when exercising the power of the examining division. The appellant requested the referral of the following question to the Enlarged Board of Appeal: "To what extent is a Board of Appeal, when exercising power within the competence of the first instance department which was responsible for the

decision appealed under Article 111(1) EPC, subject to the same constraints on that power as the first instance department, such as the duty to follow the Guidelines?". The board refused this request and stated that the Guidelines are not part of the European Patent Convention (see Art. 164(1) EPC 1973) and therefore cannot be binding upon the members of the boards of appeal (see Art. 23(3) EPC 1973).

In T 8/13, as regards the passages of the Guidelines (F-IV, 2.2, 4.5.3, 6.2 and 4.13 – 2012 version) referred to by the appellant, the board limited itself to pointing out that they could not be applied in the way the appellant has argued and that, anyway, they have no binding effect on the boards of appeal. The scope of protection conferred by the claim(s) of a patent according to Art. 69 EPC and the protocol on its interpretation, is to be distinguished from the disclosure in a patent.

The fact that the Guidelines are not binding on the boards of appeal does not mean that the boards do not apply them or quote them as a source of inspiration (see in this chapter III.W.3.).

2. Guidelines binding (in principle) on departments of first instance

The Guidelines state (General Part, 3 – March 2022 version): "The Guidelines cannot cover all possible occurrences and exceptions in every detail, but must be regarded as general instructions that may need to be adapted to the individual case. The application of the Guidelines to individual European patent applications or patents is the responsibility of the formalities officers and examiners. As a general rule, parties may expect the EPO to act in accordance with the Guidelines. It should be noted also that the Guidelines do not constitute legal provisions. For the ultimate authority on practice in the EPO, it is necessary to refer firstly to the European Patent Convention".

In T 647/93 (OJ 1995, 132) the board stated that it was normally desirable for examining divisions to act in accordance with the Guidelines, but pointed out that these were not rules of law, so failure to follow a procedure set out in them was not in itself a substantial procedural violation (T 51/94, T 937/97).

In T 162/82 (OJ 1987, 533) and T 42/84 (OJ 1988, 251), two boards of appeal ruled on the discretionary power of examining divisions to depart from the EPO Guidelines. According to these two decisions, the Guidelines were only general instructions intended to cover normal occurrences. Thus, an examining division could depart from them provided it acted in accordance with the EPC. In reviewing the decision of an examining division, a board of appeal would wish to ensure uniform application of the law and judge whether the division had acted in accordance with the Convention, not whether it had acted in accordance with the Guidelines.

In T 500/00 the board noted that what counted was not whether the opposition division had acted in accordance with the Guidelines, but whether it had acted in accordance with the Convention.

In T.1388/10, the board observed that the Guidelines merely offered general guidance covering normal occurrences. Their application in specific individual cases was the responsibility of the examining division, which could depart from them in exceptional cases. Also, the Guidelines were not the law – unlike the EPC and its Implementing Regulations. When reviewing examining division decisions, the boards did not assess whether the division had complied with the Guidelines. Rather, they considered whether it had exercised its discretion within the limits set by the EPC and its Implementing Regulations.

In J.27/94 (OJ 1995, 831) the board stated that there might be cases in which the public had a legitimate expectation that the department of first instance would not deviate from the established case law. This might apply if the relevant case law had become enshrined in the consistent practice of the department of first instance, and in particular if this had been made known to the public in published Guidelines, legal advice or notices from the EPO. In such a situation, an applicant might legitimately expect that a practice allowing or even recommending a particular way of proceeding would not be changed without appropriate advance information. In the case at issue, the Guidelines had remained unchanged, which in fact led to the reasonable expectation that the practice based on them would likewise not be changed.

The board in T.1607/08 recalled that the Guidelines were one of the sources of legitimate expectations. Therefore, where the Guidelines gave the clear indication that the continuation of the opposition proceedings had to be communicated to the patent proprietor, the latter was entitled to expect that such information would be given before a decision on the substantive issues was issued. Otherwise, as in the case at issue, the decision to revoke the contested patent would come as a surprise to the patent proprietor.

In T.182/90 (OJ 1994, 641), T.119/91, T.523/91, T.366/92 and T.397/94 the boards of appeal stated that it was **not** a substantial procedural violation within the meaning of R.67 EPC 1973 (R.103 EPC) if a request to be called back by or have an interview with the primary examiner was ignored. It was a matter for the examiner's discretion to decide whether to conduct such informal discussions in accordance with the Guidelines, bearing in mind the particular circumstances of the case (see also T.300/89, OJ 1991, 480).

The examining division's failure to follow a procedure set out in the Guidelines is not in itself a substantial procedural violation unless it also constitutes a violation of a rule or principle of procedure governed by an article of the Convention or one of the Implementing Regulations. This is because the Guidelines are not legally binding (T.42/84, OJ 1988, 251; T.51/94; J.24/96, OJ 2001, 434).

In T.246/08 the board saw, in the particular circumstances of the case, the examining division's deviation from the Guidelines as a matter for approval rather than reproach.

In T.313/10 the examining division had argued, using their own criteria, that a method performed by a computer was excluded. This was contrary to the established jurisprudence as set out in the Guidelines.